

Istiyak v. Superintendent Engineer, E.D.D., P.V.V.N.L. Amroha

High Court of Judicature at Allahabad · Division Bench · 10 January 2018 · Writ - C No. 1243 of 2018 · **Writ disposed; apply under Clause 4.44 for mutation**

HEADNOTE

A tube-well connection mutated in the petitioner's name after his father's death was later set aside by the Executive Engineer. The High Court did not restore the connection on the writ. Transfer of connection and mutation of name must be sought by application under Clause 4.44 of the Electricity Supply Code, 2005; the prescribed authority is to decide that application by a reasoned speaking order, following the prescribed procedure, expeditiously.

FACTUAL SUMMARY

A tube-well electricity connection stood in the name of the petitioner's father, Lakhan Khan. After his death the petitioner applied for transfer, claiming all legal heirs had consented, and the connection was mutated in his name. A brother, Mustak, then moved a Section 156(3) CrPC application alleging the transfer was without his consent; it was rejected. Meanwhile the Executive Engineer, by order dated 3 July 2017, set aside that mutation. The petitioner sought restoration of the connection in his name.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.44

transfer of connection / mutation of name

HOLDING

Transfer of an electricity connection and mutation of name is governed by Clause 4.44 of the Electricity Supply Code, 2005. A person seeking transfer or mutation must apply to the prescribed authority under that clause; the authority shall decide the application by a reasoned and speaking order, following the prescribed procedure, expeditiously. The writ was disposed of with those observations and without restoring the connection on the merits. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE EXECUTIVE ENGINEER'S ORDER DATED 3.7.2017 SETTING ASIDE THE MUTATION WAS VALID, AND WHETHER THE CONNECTION SHOULD BE RESTORED IN THE PETITIONER'S NAME

Left to a fresh Clause 4.44 application before the prescribed authority ¶ 2